

23TRCV04009 23TRCV04009

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23TRCV04009 Hearing Date: July 8, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

MAHIN

GOLCHIN,

Plaintiff,

Case No.:

23TRCV04009

vs.

[Tentative]

RULING

LAX

PHYSICAL MEDICINE, et al.,

Defendants.

Hearing

Date: July 8, 2026

Moving Party: Plaintiff Mahin Golchin

Responding

Party: Defendant DJO

Global, Inc.

Motion to Strike and

Tax Costs

The Court considered the moving, opposition, and reply papers.

RULING

The motion is GRANTED IN PART. See Order below.

BACKGROUND

On December 6, 2023, plaintiff Mahin Golchin filed a complaint against LAX Physical Medicine, LAX Physical Therapy, and Matthew Araghi for general negligence; and against DJO Global, Inc. for product liability.

On January 26, 2024, plaintiff filed an amendment designating Doe 1 as Matthew Szkalak.

On March 14, 2024, the court sustained defendants LAX Physical Medicine and Matthew Araghi's demurrer with leave to amend based on uncertainty because there were no allegations against LAX Physical Medicine.

On March 14, 2024, plaintiff filed a FAC.

On April 30, 2024, the Court overruled LAX Physical Medicine and Araghi's demurrer to the first cause of action in the FAC.

On December 30, 2025, the Court granted motion to continue trial, from March 16, 2026 to May 4, 2026.

On February 2, 2026, plaintiff filed an amendment designating DJO, LLC as Doe 1.

On March 10, 2026, the Court denied defendant DJO Global Inc.'s motion for summary judgment.

On April 23, 2026, the Court denied DJO Global's motion for relief from untimely expert witness designation.

On April 24, 2026, the Court granted plaintiff's oral request to dismiss DJO, LLC. The Court continued the trial to June 1, 2026. Defendants Szkalak and LAX Physical Therapy indicated that they reached a settlement.

On April 30, 2026, the Court granted plaintiff's oral request to dismiss DJO Global, Inc. The Court denied DJO Global's motion for terminating and monetary sanctions.

On May 6, 2026, based on the agreement of the existing parties, the Court vacated the trial date.

On May 8, 2026, plaintiff filed an amendment stating that the true name for DJO Global Inc. is DJO LLC.

On May 14, 2026, DJO Global, Inc. filed a memorandum of costs for \$77,641.80.

On June 1, 2026, plaintiff filed a request for dismissal as to defendants LAX Physical Therapy and Matthew Szkalak.

LEGAL
AUTHORITY

"Except
as otherwise expressly provided by statute, a prevailing party is entitled as a

matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party." Nelson v. Anderson (1999) 72 Cal. App. 4th 111, 128-29 (citations and internal quotations omitted); CCP §1032(b) ("Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding"). Under CCP §1032(a)(4), a "prevailing party" includes "a defendant in whose favor a dismissal is entered.

CCP

§1033.5(c) states, in relevant part:

"Any award for costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2)
Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3)
Allowable costs shall be reasonable in amount.

(4)
Items not mentioned in this section . . . may be allowed . . . in the Court's discretion."

"Any
notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If
the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If
the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3)." Cal. Rules of Court, Rule 3.1700(b)(1).

"If
the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the
items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs."

Ladas v. California State Automotive Assoc. (1993) 19 Cal. App. 4th 761, 774 (citation omitted). Id. "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." Nelson v. Anderson (1999) 72 Cal. App. 4th 111, 131 (citations omitted). "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." Seeever v. Copley Press, Inc. (2006) 141 Cal. App. 4th 1550, 1557.

DISCUSSION

Plaintiff Mahin Golchin requests that the Court tax the memorandum of costs filed by DJO Global, Inc. on May 14, 2026 for the total claimed amount of \$77,641.80.

Plaintiff argues that the memorandum of costs is premature because DJO Global, Inc. has been dismissed and replaced by its corporate affiliate, DJO, LLC, which has been identified as the correct defendant, named, and served. Plaintiff asserts that DJO, LLC remains an active party, and that DJO, LLC will rely on the same experts, depositions, and case preparation.

In opposition, defendant DJO Global argues that it is the prevailing party because plaintiff voluntarily dismissed it. Defendant also argues that it is a legal entity wholly separate and apart from DJO, LLC and that the costs were incurred by defendant DJO Global.

In reply, plaintiff asserts that the dismissal of DJO Global, Inc. was a procedural substitution and that DJO, LLC will rely on the identical expert witnesses and deposition transcripts. Plaintiff further argues that the entities are not "genuinely separate" for purposes of "this cost dispute."

The Court finds that DJO Global, Inc. is the prevailing party because it is a "defendant in whose favor a dismissal" was entered. DJO Global is entitled to recover its costs.

Item 1: filing and motion
fees

Plaintiff argues that defendant
improperly included courier delivery fees (e.g., \$26.75 to \$125.50 per
transaction), rush-service premiums, wait time, and courtesy copy delivery to
the judge's department.

In the opposition, defendant argues
that its costs for the services of First Legal to file electronically as
required are recoverable. Defendant
further argues that plaintiff has not met her burden of showing why the other
fees are not recoverable.

The Court finds that defendant is
entitled to such costs as reasonably necessary.

Item 4: deposition costs

Plaintiff argues that numerous
deposition cost line items are not recoverable, including expert witness
deposition taking fees (\$2000 for Dr. Mohammad Rezani, \$2400 for Dr. S. Kent
Choi, \$1000 for John P. Abraham, Ph.D.), videotaping fees (\$1250 and \$775 for
plaintiff's deposition), interpreter surcharges embedded within transcript
bills (\$275 and \$178.75 for Ben Hyatt "interpreted depo surcharge"), and
expedite/AI-summary charges (\$266.25 expedite surcharge, and multiple invoices
for "intelligent summary" charges of \$50/each) that are not reasonably
necessary to the conduct of the litigation.
Plaintiff also asserts that the \$2000 non-refundable retainer paid to
Dr. Mohammad Rezvani, included within the deposition "taking" fees is not
recoverable as it is an expert fee, not a deposition reporter's fee.

In the opposition, DJO Global agrees
that these fees are not recoverable because DJO, LLC served the 998 offer. As such, DJO Global accepts the reduction in
expert
witness deposition fees. As for
videotaping fees, they were reasonably incurred as videotaped depositions
"captures both the spoken word and the witness' visual demeanor" and the
counsel who took the deposition was not trial counsel. As for the interpreter surcharges, defendant

asserts that they are not the same as surcharge expenses charged by the court reporter. Defendant also argues that the fees to expedite Weinzoff transcript was reasonably necessary because Weinzoff was a retained expert for the other defendants and was deposed twenty-four days before the FSC. Further, defendant contends, summarizing a deposition transcript is reasonably necessary to the conduct of litigation and a tool used by trial counsel in preparing for cross-examination and using AI is a cost saving device.

The Court finds that DJO Global is not entitled to deposition costs as to the experts in the amount of \$5420, as conceded by defendant. The Court also finds that \$266.25 for expedited transcripts and \$150 for AI summaries are discretionary and not reasonably necessary to litigation.

Item 8: expert witness fees - \$51,157.43 (\$31,875 for James Brennan, Ph.D., \$13,128.50 for Kaitlin Alexander, \$6066.67 for Terry Dubrow, M.D., \$87.26 expenses)

Plaintiff argues that expert fees are expressly excluded from recoverable costs under CCP §1033.5(b)(1) absent a valid CCP §998 offer. Plaintiff further argues that the Exponent billing backup reveals that the charges include time spent on trial preparation, client strategy calls, technical standards research, and material review, none of which would be recoverable even under CCP §998.

In the opposition, DJO Global agrees that these fees are not recoverable. As such, DJO Global accepts the reduction of \$51,157.43.

The Court finds that defendant is not entitled to expert fees in the amount of \$51,157.43, as conceded by defendant.

Item 16: Other - \$397.55

Plaintiff argues that medical record retrieval is discretionary.

Defendant does not address.

The Court finds that such costs are discretionary and not reasonably necessary.

The motion is thus GRANTED IN PART.

The following costs are

STRICKEN: \$5420 for expert deposition fees, \$266.25 for expedited transcripts, \$150 for AI summaries, \$51,157.43 for expert witness fees, and \$397.55 for medical records retrieval, for a total of \$57,391.23. The Court allows \$20,250.57.

ORDER

The motion is GRANTED IN PART.

The Court strikes from defendant DJO Global, Inc.'s memorandum of costs \$57,391.23.

Plaintiff is ordered to give notice of ruling.